

6th Legislature



Enactment No. 36

To establish a system for the numbering of legislation, and for other purposes.

IN THE CHICKASAW TRIBAL LEGISLATURE

May 19, 1989

Mr. Barney ABBOTT, Mr. Edward BROWN and Mrs. Dawatha EASTERLING introduced the following bill

A BILL

To create a numbering system for legislative actions taken by the Chickasaw Tribal Legislature, and for other purposes.

Be it enacted by the tribal legislature of the Chickasaw Nation assembled, that this Act may be cited as the "Legislation Clarification Act of 1989."

SEC. 2. The legislature finds that--

(1) A need exists for a system of numbering to be applied to bills and other items presented for the consideration of the Chickasaw Tribal Legislature which will allow greater ease in the use of and reference to enactments adopted by the Chickasaw Tribal Legislature.

SEC. 3. For the purpose of this Act--

(1) "The Chickasaw Nation" means the tribe of Indians located within the boundaries set forth in the Constitution of the Chickasaw Nation, being duly recognized by the secretary of the interior of the United States of America, as a self-governing, sovereign government;

(2) "Constitution" means the Constitution of the Chickasaw Nation as ratified by the voters of the

Chickasaw Nation on August 27, 1983;

(3) "Chickasaw Tribal Legislature" or "legislature" means the legislative branch of the Chickasaw Nation tribal government as created and empowered by Articles V, VI, VII, VIII and IX of the Constitution;

(4) "Governor" means the chief magistrate of the Chickasaw Nation, as defined in Article X, Section 1, of the Constitution;

(5) "Bill" means the draft of a proposed law from the time of its introduction in the legislature, through the normal routines of the legislature, until such time as it is signed by the governor and becomes law;

(6) "Act" means a bill after it has been acted upon and passed by the legislature;

(7) "Law" means a body of rules of action or conduct prescribed by the legislature, and having binding legal force; that which must be obeyed and followed by citizens of the Chickasaw Nation and others subject to sanctions or legal consequences;

(8) "Fiscal year" means that period of 12 months which begins on October 1 of one year and ends on September 30 of the following year;

(9) "Resolution" means a formal expression of the opinion or will of the legislature, adopted by vote, usually employed to denote the adoption of a motion, the subject-matter of which would not properly constitute a statute, such as a mere expression of opinion, a vote of thanks or of censure. Resolutions do not have the effect of law.

SEC. 4. The basis for authority of this Act is Article VII, Section 4, of the Constitution, wherein the tribal legislature is granted the power and authority to enact rules and regulations pertaining to the Chickasaw Nation in accordance with the Constitution. The Chickasaw Tribal Legislature, with the adoption of this Act, hereby:

(a) Establishes a system of numbering for all bills introduced in the legislature and for all laws adopted by the legislature and signed by the governor, and

(b) establishes a system of numbering for all resolutions introduced in the legislature.

SEC. 5. No bill shall be introduced in the legislature without first having been assigned a number. Such numbers and assignments shall be made by a person specially designated by the governor. In order for the number assignment to be made, the bill in its entirety must be submitted to that person no later than two weeks before its scheduled introduction to the legislature. Numbering of bills shall be accomplished in the following manner:

(1) All bills shall be assigned a three-digit number. The three numerals shall reflect the numerical sequence of the bill itself. For example, if the bill is the first bill to be introduced during this legislative year, the three digits will be zero-zero-one, displayed as follows: 001.

SEC. 6. After a bill has been acted upon by the legislature and forwarded to the governor, it becomes an Act. Numbers of such acts shall remain the same; however, if the governor signs the Act into law, it shall be assigned a new number by the person designated by the governor to assign such numbers. Numbers for such laws shall be assigned in the following manner:

(1) All laws shall receive a four-digit number. The first digit shall represent the number of the legislature during which the Act was adopted. For example, any Act adopted during the current fiscal year will receive the first number of six, since this is the sixth legislature of the Chickasaw Nation;

(2) All laws shall also receive a three-digit number, following the first digit addressed in the paragraph immediately above, and separated by a dash. This three-digit number shall represent the number of the law, in sequential order, as signed by the governor. For example, the third Act signed into law by the governor during this fiscal year becomes Tribal Law 6-001, and may be abbreviated as T.L. 6-001.

SEC. 7. Resolutions introduced in the legislature shall be numbered according to the fiscal year in which they are introduced and in numerical sequence. All resolutions introduced during fiscal year 1989 shall be numbered with the last two digits of the fiscal year, followed and separated by a dash with the number of the resolution. For example, the third resolution introduced during fiscal year 1989 shall be numbered Resolution Number 89-03. All resolution numbers shall be assigned by the person designated to do so by the governor, and must be presented to that person no later than two weeks before scheduled for introduction in the legislature.

SEC. 8. The numbering systems established herein shall become effective immediately upon signing of this bill by the governor. All previous Acts and laws, dating back to the First Legislature in 1983, shall be re-numbered to conform to this system, and this process shall be overseen by the governor.

SEC. 9. This Act shall repeal and nullify any other similar legislation or rules or regulations governing the Chickasaw Tribal Legislature and its actions.

Executed in regular session of the Chickasaw Tribal Legislature meeting at Ada, Oklahoma, on May 19, 1989, by a vote of 13 ayes, 0 nays and 0 abstentions.

Enactment Number 37 (Bill Number 6-007)
May 19, 1989

Joe Kent Abbott
Chairperson
Chickasaw Tribal Legislature

Gene Duncan
Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby
Bill Anoatubby, Governor
The Chickasaw Nation

Date: May 20, 1989

